

26PR00527 Matter of Jackie Edson Gage, William D Gage Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-07

Motion: Petition for an Order to Confirm Assets of Revocable Trust

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Petition for an Order to Confirm Assets of Revocable Trust

Tentative Ruling: The matter is CONTINUED to November 20, 2026 at 9:30 a.m. in Department 63 to allow the petitioner an opportunity to correct the notice defects, noted below.

Use of the DE-115 notice of hearing form is mandatory in the context of California Probate Code ("Prob C") §850 petitions. The petitioner has used the incorrect notice of hearing form here, the DE-120 form. Also, the notice of hearing does not include a description of the subject property, as required by Prob C §851(c)(1). These issues were noted in the examiner notes posted June 24, 2026 but have not been corrected.

If the petitioner can obtain a waiver of notice from the remainder beneficiaries, they may file it in advance of the hearing and request to appear at the hearing (in accordance with applicable local rules) to present the waiver to the Court, potentially avoiding the continuance.